

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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DENEENE WASHINGTON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOHN
ROBERT, Shield No. 16757, and POLICE OFFICERS
JOHN DOES 1-10, (names and numbers of whom are
unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Queens
County as the place of trial.**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 3, 2016

Yours, etc.

/s/

JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690TO: City of New York, 100 Church Street, NY, NY 10007
Police Officer John Robert, Shield No. 16757, 113th Precinct, 167-02 Baisley Blvd.,
Jamaica, NY 113434

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS----- X
DENEENE WASHINGTON,

Plaintiff,

INDEX NO.:**VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, POLICE OFFICER JOHN
ROBERT, Shield No. 16757, and POLICE OFFICERS
JOHN DOES 1-10, (names and numbers of whom are
unknown at present),**JURY TRIAL DEMANDED**Defendants.
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Plaintiff, DENEENE WASHINGTON, by his attorneys, Jacobs & Hazan, PLLC, as and
for her Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, Section 1988, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 20, 2020, at approximately 6:00 p.m., plaintiff was lawfully present inside of her home located at 12-08 203rd Street, Queens, New York when the individually named defendant police officers falsely arrested, falsely imprisoned, unlawfully seized, assaulted, and battered plaintiff. Thereafter, defendants maliciously and incorrectly classified plaintiff an Emotionally Disturbed person and transported plaintiff to Queens Hospital Center, Queens, New York, against her will. At no time did defendants have an objective basis to believe plaintiff was a danger to herself or others, nor did defendants have probable cause to arrest plaintiff for violating the law. Plaintiff was unlawfully detained at the hospital based upon the defendants' false allegations that she was an emotionally disturbed person. Once classified as an EDP by the defendants, plaintiff was not free to leave the custody of defendants at the hospital until she was evaluated by a psychiatrist and cleared to be released. Based upon the defendants' false allegations against plaintiff, she was unlawfully medicated and sedated against her will and without any basis upon arriving at the hospital and before she was even evaluated by a psychiatrist. Plaintiff was forced to have her blood and urine drawn and evaluated without her consent. After the plaintiff was no longer sedated from the medication she was evaluated by a psychiatrist who concluded after a short conversation with plaintiff that she was not a danger to herself or others and cleared plaintiff to be released from the hospital on March 21, 2020, at approximately 12:00 pm, without ever being charged with a crime by defendants. Plaintiff was deprived of her constitutional and common

law rights when the individual defendants falsely arrested, falsely imprisoned, unlawfully seized her, assaulted, battered, and subjected plaintiff to excessive force in violation of the Fourth and Fourteenth Amendments to the United States Constitution, and the common laws of the State of New York.

PARTIES

2. Plaintiff DENEENE WASHINGTON is a resident of the State of New York.

3. Defendant Police Officer John Robert, Shield No. 16757, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. Defendant Police Officer John Robert, Shield No. 16757, is and was at all times relevant herein was assigned to the 113th Precinct.

5. Defendant Police Officer John Robert, Shield No. 16757 is being sued in his individual and official capacity.

6. Defendants Police Officers John Does #1-10, are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. Defendants Police Officers John Does #1-10 are being sued in their individual and official capacities.

8. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised, and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

10. . At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department and the City of New York at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

11. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

12. Plaintiff appeared and testified at a hearing noticed by Defendant City of New York pursuant to General Municipal Law Section 50-h on March 29, 2021.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. By way of background, on March 20, 2020, the number of people requiring hospitalization due to the COVID-19 virus in Queens, New York was spiking, hospitals were running out of resources and space to treat patients and the State of New York ordered all citizens to shelter in place.

17. On March 20, 2020, plaintiff lived at 112-08 203rd Street, Queens, New York with her 22-year-old niece.

18. On March 20, 2020, plaintiff's 22-year-old niece threw a party at plaintiff's home whereat several of her niece's friends came to plaintiff's home.

19. Plaintiff's niece's friends were not wearing masks to decrease the chance that they could transmit COVID-19 to others, they were loud and did not respect plaintiff's personal space.

20. Plaintiff was frightened that her nieces friends might bring the COVID -19 virus into her home and possibly infect her.

21. Plaintiff is classified as a high risk of developing a severe and possibly deadly case of COVID-19 if she contracts the virus.

22. Plaintiff's niece's friends presence at plaintiff's home caused plaintiff to fear for her safety and she asked them to leave.

23. Plaintiff's niece refused to have her friend's leave the home and her friend's verbally and physically assaulted plaintiff when she demanded that they leave her home.

24. On March 20, 2020, at approximately 6:00 PM plaintiff was lawfully present, cooking dinner, inside of her home located at 112-08 203rd Street, Queens, New York, when her 22-year-old niece's friends came into the kitchen and began threatening plaintiff and lunged at plaintiff when she asked them not to go into the refrigerator.

25. Plaintiff was frightened by the threats and the possibility that she was going to contract COVID from her niece's friends.

26. Plaintiff called 911 to have her niece's friends removed from her home.

27. Shortly thereafter the individually named defendant police officers arrived at plaintiff's home and plaintiff told the police officers that her niece's friends were violating the COVID-19 orders by the Governor to shelter in place, that they threatened her, that they refused to leave her home when she asked them to leave, that she was fearful that she might contract COVID from them, and that she wanted them removed from her home.

28. The defendants refused to remove plaintiff's niece's friends from plaintiff's home and left the location.

29. After the officers left, plaintiff's niece's friends continued threatening and harassing plaintiff.

30. Therefore, plaintiff called 911 again to request police assistance to remove her niece's friends her home.

31. Defendants arrived at plaintiff's home again, and defendants were annoyed that plaintiff called 911 again because they already came to plaintiff's home that evening for the same complaint.

32. . Defendants were not wearing masks and refused to wear masks to protect others from contracting COVID from them, even though they were present inside of plaintiff's home.

33. Defendants refused to assist plaintiff again, and plaintiff went to her bedroom which was located in the basement of the house and closed her door so that she could stay as far away from all of the people in her home as she possibly could.

34. However, the defendants followed plaintiff into the basement and ordered plaintiff to open her bedroom door.

35. At no time relevant herein did plaintiff do are say anything that would lead a reasonable police officer to believe she was a danger to herself or others.

36. However, the officers called an ambulance to the location, and fabricated allegations against plaintiff to the EMTs that plaintiff was a danger to others.

37. The officers brought the EMTs into the basement of plaintiff's home where plaintiff was locked inside of her bedroom.

38. When the EMTs arrived outside of plaintiff's bedroom door, plaintiff opened her bedroom door and told the EMTs that she did not need or want any medical attention.

39. In response, the defendants physically grabbed plaintiff in an extremely forceful and unreasonable manner, tackled her to the ground and unlawfully handcuffed plaintiff without probable cause or legal justification.

40. Defendants falsely arrested plaintiff.

41. At no time did defendants possess an objective factual basis to believe plaintiff violated the law or committed a crime.

42. At no time did defendants possess an objective factual basis to believe plaintiff was a danger to herself or others.

43. Defendants refused to permit plaintiff to lock her bedroom door before they forcefully removed her from her home against her will and defendants told plaintiff that she was being arrested.

44. Plaintiff complained that the defendants were not wearing masks and that she did not have one to protect her from contracting COVID.

45. However, the defendants handcuffed plaintiff to a gurney, removed her from her home and placed her in an ambulance against her will.

46. Based upon the officers false representations to the EMS workers that plaintiff was a danger to others, plaintiff was injected with a sedative against her will.

47. Plaintiff was transported against her will to Queens Hospital Center which was one of the hospitals that was overrun with COVID patients, was running out of resources to treat the COVID patients and had refrigerated trailers outside of the hospital for the dead bodies that were accumulating at an alarming rate.

48. Plaintiff reasonably objected to being forced to go to Queens Hospital Center, especially without the protection of a mask and she was terrified that she would contract COVID-19 because the defendants were forcing her to go to a location filled with people who were sick and dying from the contagious virus.

49. Upon arriving at the hospital plaintiff was forced to have her blood and urine drawn and tested without plaintiff's consent.

50. The defendants never possessed any objective evidence that suggested plaintiff was a danger to herself or others.

51. Regardless, in order to detain plaintiff against her will the defendants falsely classified plaintiff as an Emotionally Disturbed Person (EDP) and forced her to go to the hospital.

52. Plaintiff was never charged with committing a crime..

53. Once classified as an EDP by the officers, plaintiff could not be released from custody at the hospital until she was evaluated by a psychiatrist and cleared to be released.

54. Plaintiff was medicated and sedated against her will and without any basis before she was even evaluated by a psychiatrist.

55. After the sedation wore off, plaintiff was finally evaluated by a psychiatrist who concluded after a short conversation with plaintiff that plaintiff appeared perfectly normal and was in no way a danger to herself or others.

56. The psychiatrist at the hospital concluded that plaintiff was psychologically normal and was not a danger to herself or others, and that there was no basis to detain her further.

57. The psychiatrist cleared plaintiff to be released from the hospital on March 21, 2020, at approximately 12:00 pm without ever being charged with a crime.

58. The defendants lacked any factual basis to accuse plaintiff of being an emotionally disturbed individual.

59. The individually named defendant police officers knowingly and wrongfully accused plaintiff of being emotionally disturbed.

60. Defendants had no objective reason to believe plaintiff was emotionally disturbed.

61. Defendants had no objective reason to believe plaintiff was a danger to herself or others.

62. At no time did plaintiff resist or try to fight back against the defendant officers, but the defendant officers forcibly carried her out of her home and handcuffed her to a gurney so that she could be transported to the hospital via ambulance.

63. Some of the defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unlawful detention, unlawful seizure, unlawful confinement, false arrest, false imprisonment, and use of excessive force against plaintiff, and they are liable to plaintiff for their failure to intervene and stop the unlawful actions by their fellow police officers.

64. The false arrest, unlawful seizure, false imprisonment, and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

66. The individually named defendants while acting in concert and within the scope of their authority and acting under the color of law and as state actors, caused plaintiff to be falsely arrested and falsely imprisoned, unlawfully seized and detained without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.

70. The City of New York as the employers of the officers is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The use of excessive force by defendants by tackling plaintiff to the ground, forcible handcuffing plaintiff, and removing her from her home in a forceful manner and against her will was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Negligence

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. Defendants owed a duty of care to plaintiff.

78. To the extent defendants claim that the injuries to plaintiff's person by the defendant police officers were unintentionally caused and that the force used by the defendants against her was unintentional, then the defendants breached that duty of care by accidentally and

negligently injuring her while handcuffing plaintiff causing her to suffer physical injuries to plaintiff's body.

79. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

80. All of the foregoing occurred without any fault or provocation by plaintiff.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, and the New York City Police Department, which are therefore responsible for their conduct.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, in that the officers forced plaintiff to go to a hospital that was having difficulty handling the number of patients it was treating for COVID in the middle of the COVID pandemic when plaintiff did not even require medical attention and was classified as someone who would have a high risk of death if she contracted COVID, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

85. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, and the New York City Police Department which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Assault

88. Plaintiff repeats and realleges paragraphs 1 through 87 as if fully set forth herein.

89. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

90. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, and the New York City Police Department, which are therefore responsible for their conduct.

91. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Battery

92. Plaintiff repeats and realleges paragraphs 1 through 91 as if fully set forth herein.

93. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered plaintiff, when they, in a hostile and/or offensive manner tackling plaintiff to the ground, forcible handcuffing plaintiff, and removing her from her home in a forceful manner and against her will and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, and the New York City Police Department, which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

NINTH CAUSE OF ACTION

Failure to Intervene

96. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights, common law rights, and rights under the New York State Constitution were being violated in their presence by other officers.

98. Defendants failed to intervene to prevent the unlawful conduct described herein.

99. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, and the New York City Police Department which are therefore responsible for their conduct.

101. The City of New York as the employers of the officers are responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

102. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff DENEENE WASHINGTON demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 18, 2021

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, 100 Church Street, NY, NY 10007
Police Officer John Robert, Shield No. 16757, 113th Precinct, 167-02 Baisley Blvd.,
Jamaica, NY 113434

ATTORNEY'S VERIFICATION

DAVID M. HAZAN an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 18, 2021

/s/
DAVID M. HAZAN, ESQ.